

STATEMENT OF WORK
for
Program Manager for Reasonable
Accommodations (RA) Support Services

I. BACKGROUND

The U.S. Department of Transportation (DOT or Agency), Departmental Office of Civil Rights (DOCR) is responsible for ensuring that the Agency is compliant with the provisions of the Rehabilitation Act of 1973, as amended (Rehabilitation Act); the Americans with Disabilities Act of 1990, as amended (ADAA); Title VII of the Civil Rights Act of 1964, as amended (Title VII); and the Pregnant Workers Fairness Act of 2023 (PWFA). These statutes and their associated regulations require federal agencies to provide reasonable accommodation for qualified applicants and employees who qualify based on disability status, religion, pregnancy, childbirth and related medical conditions, unless doing so would cause an undue hardship to the Agency. The Contractor will provide the Agency reasonable accommodations analyst support services as set forth herein.

II. APPLICABLE AUTHORITIES

Title VII of the Civil Rights Act of 1964, as amended
Rehabilitation Act of 1973, as amended
Americans with Disabilities Act of 1990, as amended
Civil Rights Act of 1991
Pregnant Workers Fairness Act of 2023
Health Insurance Portability and Accountability Act of 1996 (HIPAA)
29 C.F.R. Parts 1614 and 1630
EEOC Management Directive (MD) 110 and 715
Executive Orders 11478 and 13164
DOT reasonable accommodation orders, bulletins, policies, procedures, and labor agreements

IV. REQUIREMENTS

A. Scope

The Contractor will assign labor category to provide the reasonable accommodation support services The Contractor's RA Support will play a critical role in supporting the

Agency's reasonable accommodations program, its disability program managers, and accommodations case managers in reviewing reasonable accommodations requests; evaluating disability documentation, including medical information; and drafting decision letters recommending approval of the request, an alternative accommodation, denial of the request, or indicating that additional information is required. Services will be performed remotely off-site.

B. Program Manager Scope of Role

The Contractor shall provide a Program Manager (PM) to serve as the primary administrative and technical lead for all services under this contract. The PM serves as the "Team Lead" for all contractor personnel and is the authorized liaison between the Contractor's corporate office and the Government. The PM is responsible for monitoring contractor personnel performance and must submit requests to the Contractor's corporate office to remove any personnel who fail to meet contract requirements or professional standards. The PM shall have the following functions and responsibilities:

1. Administrative Point of Contact: Primary point of contact for receiving, confirming, and tracking all assignments and cases.
2. Operational Oversight: Manages daily schedules for all contractor personnel to ensure efficient resource utilization and continuity of service for recurring tasks.
3. Personnel Performance: Supervises the performance of all assigned contractors and relays COR feedback on service quality to the Contractor's corporate office.
4. Budgetary Projection: Provides the COR with monthly projections of anticipated needs to assist the Government in determining funding requirements during Continuing Resolutions (CR).
5. Invoice Reconciliation: Prepares and submits a "Pre-Draft Invoice" by the 15th of each month for COR review to ensure accuracy before formal submission.
6. Communication Buffer: Acts as the first point of contact for all internal corporate inquiries regarding payment status and funding.
7. Remote Availability: Maintains availability during core business hours (8:00 AM – 5:00 PM EST) via phone, email, and virtual platforms.

C. Program Manager Qualifications

Each RA Support Analyst must satisfy the following minimum qualifications. The Contractor must provide information showing the below qualifications in a resume or supporting written material for each RA Support Analyst assigned to perform work under this contract:

1. At least five (5) years' experience working as an attorney; or at least three (3) years' experience in human resources, labor relations, or a related field with experience in reasonable accommodations processing and/ or disability management.
2. Technical expertise in applying relevant laws, regulations, and best practices related to reasonable accommodations processing and/or disability management.
3. Strong knowledge of assistive technology applications and devices.
4. Technical expertise in providing professional medical documentation review and analysis for the purpose of deciding reasonable accommodation requests.
5. Proficiency in providing administrative support as directed, including data collection, basic research, report preparation and analysis, and drafting and disseminating routine correspondence and other written material.
6. Demonstrated ability to understand and follow Standard Operating Procedures, agency policies, and directed instructions.
7. Strong professional interpersonal, teamwork, and customer service skills, including excellent written and oral communication abilities.
8. Demonstrated ability to adhere to strict confidentiality requirements,

C. Reasonable Accommodation Request Review and Analysis Requirements

1. The RA Support Analyst shall determine whether the requester has submitted sufficient information to establish their qualifications to receive reasonable accommodation based on disability under the Rehabilitation Act; religion under Title VII or based on pregnancy, childbirth or related medical conditions under PWFA.
2. The RA Support Analyst shall determine whether medical documentation is required to establish the existence of a disability or the functional limitations relevant to each reasonable accommodation request.
3. If medical documentation is needed, the RA Support Analyst shall prepare and send a request for the appropriate medical information to the employee or applicant requesting reasonable accommodation, consistent with the model request provided or approved by the Agency.
3. The RA Support Analyst shall review any medical information received and integrate it into the decision letters recommending approval of the request, an alternative accommodation, denial of the request, or indicating that additional information is required.

4. If the RA Support Analyst determines that additional information is required, the RA Support Analyst will notify the Agency in writing, including the specific information recommended to be requested to complete the analysis and decision on the request.

D. Essential Job Functions Review Requirements

1. Within 2 business days of assignment of a case to the contractor, the RA Support Analyst shall initiate communication with the employee's supervisor or the applicable hiring official to clarify the essential functions of the requestor's position relative to the reasonable accommodation request. This inquiry will be conducted utilizing the form or format provided or approved by the Agency.
2. The RA Support Analyst shall document the essential functions, and any relevant performance or operations considerations identified by the supervisor or hiring official, on the form or in the format provided or approved by the Agency and include it in the RA request file.

E. RA Request Analysis and Recommendation Requirements

1. The RA Support Analyst shall review the request and any supporting documentation, including medical information, as well as the essential functions documentation to evaluate whether (a) the requestor is qualified to receive an accommodation under one of the applicable statutes; (2) the requested reasonable accommodation would enable the employee or applicant to perform the essential functions of the job, participate in the hiring process, or enjoy a benefit or privilege of employment; (3) there are alternative effective accommodations for consideration.
2. If, upon review of the request file, the RA Support Analyst believes that the request is not feasible, the RA Support Analyst will work with the manager and the employee to facilitate the interactive process to determine an effective accommodation.
3. The RA Support Analyst shall assess whether there is any available effective accommodation that would allow the employee or applicant to perform the essential functions of the job, participate in the hiring process, or enjoy a benefit or privilege of employment, and draft the recommendation letter accordingly. The letter shall specify the specific functional limitations and all proposed effective accommodations for consideration.

F. RA Request Recommendation Letter Requirements

1. Within 20 business days, the RA Support Analyst shall prepare and submit to the Agency a written recommendation letter in the form or format that the

Agency provides or approves which contains:

- a. A description of the process followed, including all interactions and information reviewed.
- b. A summary of relevant facts, medical and function findings, and the essential function analysis
- c. A clear recommendation on whether the requested accommodation should be granted.
- d. If the requested accommodation cannot be granted, a recommendation of any proposed alternative accommodations and a rationale explaining why each would be effective.

G. Reporting Requirements

1. Performance Reports

All performance reports should be formatted in a clear and organized manner, allowing for easy comprehension and analysis of the provided data. The contractor shall ensure accuracy, completeness, and timely submission of the reports as per the specified due dates. The Contractor will prepare a performance report with details regarding the services rendered, including but not limited to the following information:

- Employee ID: Unique identifier for each employee involved in providing services.
- Operating Administration: The specific agency or division within the government for which the services were provided.
- Date request submitted: The date on which the service request was submitted by the government agency.
- Date service provided: The date(s) on which the services were actually provided.
- Start time: The time at which the assignment or service provision began.
- End time: The time at which the assignment or service provision ended.
- Duration of the assignment: The total duration of the service request, calculated as the difference between the start and end times.
- Number of personnel assigned: The total number of contractor personnel involved in the service provision.
- Service(s) provided: Indicates the specific services provided during the reporting period.
- Cancellation date, when applicable: If an assignment was rescinded, the date on which the cancellation occurred.

- Total number of requests received for the reporting period: The overall count of service requests received during the reporting period.
- Total number of hours spent provided services for the reporting period: The total number of hours dedicated to the assigned work.
- Total number of assignments serviced: The total count of assignments worked on during the reporting period.
- Total number of shift hours for the reporting interval: The total number of hours worked by all employees during the reporting period.

The Contractor will provide the Performance Reports on the following schedule:

- Bi-weekly Reports: The COR with a bi-weekly report covering two distinct periods: the 1st through the 15th of the month and the 16th through the end of the month. The bi-weekly report shall be submitted to the COR within three (3) business days following the end of each bi-weekly period.
- Monthly Reports: The Contractor will provide the COR with a monthly report covering the previous month's information, that is due on the 15th of each month.
- Quarterly Reports: The Contractor will prepare four (4) quarterly reports to the COR. These reports are due within five (5) business days of the end of the fiscal quarter (December 31, March 31, June 30, September 30).
- Fiscal Year Reports: The Contractor will prepare and submit a fiscal year report to the COR by the second Friday in October of the new fiscal year.

2. Budget Reports

The Contractor will prepare an invoice report that details the estimated costs spent on the contract to date. This single report will detail the services rendered and include, but is not limited to the following information:

- Budget year: The fiscal year for which the budget is allocated
- Month of services: The specific month during which the services were rendered
- Invoice number: A unique identifier for each invoice
- Invoice amount: The total amount specified in the invoice
- Contract Line-Item Number (CLIN): A unique identifier for each line-item within the contract
- Total by CLINs: The total amount spent for each CLIN
- Fully Funded Amount: The total amount of funds allocated for the

contract

- Obligated amount: The amount of funds that have been obligated for specific CLINs or services

The Contractor will provide Budget Reports on the following schedule:

- Bi-weekly Reports: The Contractor will provide the COR with a bi-weekly report covering two distinct periods: the 1st through the 15th of the month and the 16th through the end of the month. The bi-weekly report shall be submitted to the COR within three (3) business days following the end of each bi-weekly period.
- Monthly Reports: The Contractor will provide the COR with a monthly report covering the previous month's information. That is due on the 15th of each month. This report should also include a running total of the contract amount obligated and the amount still available. It will serve as a pre-draft invoice and will be approved by the COR prior to invoice finalization and submission to the payment office.
- Quarterly Reports: The Contractor will prepare four (4) quarterly reports to the COR. These reports are due within five (5) business days of the end of the fiscal quarter (December 31, March 31, June 30, September 30).
- Fiscal Year Reports: The Contractor will prepare and submit a fiscal year report to the COR by the second Friday in October of the new fiscal year.

H. Performance Requirements

The Contractor's work shall:

- a. Comply with all applicable disability and employment laws.
- b. Maintain confidentiality of medical and personnel information.
- c. Store and transmit information securely in accordance with Agency directions.
- d. Ensure only authorized personnel access to all agency and RA case materials.
- e. Demonstrate impartiality, accuracy, and sound professional judgment.
- f. Be completed within the timelines established herein, unless written approval of a request for extension is submitted to the Agency and approved by the Agency in writing.
- g. Result in a completed case file for each assignment, per Agency instructions.

I. Government Furnished Equipment, Access and Information

The Agency shall provide:

- a. The request file and all initial documentation submitted by the requestor.
- b. Point of contact information for the requestor and the Supervisor.
- c. Applicable Agency RA policies and procedures.
- d. A laptop, PIV card, and required IT access for each RA Support Analyst.

V. WORK DELAYS/REQUESTS FOR EXTENSION

If the performance of the work is delayed or interrupted by failure of the Agency to provide documentation or information required to process the reasonable accommodation request, the Contractor shall advise the Contracting Officer Representative (COR) within three (3) business days after the deficiencies are noted. The COR will attempt to resolve the matter and will advise the Contractor on how to proceed. If an assignment is terminated through no fault of the Contractor, payment will be prorated based on the percentage of work completed. See Appendix for Partial Payment Guidelines.

Contractor must provide COR with all completed work performed until the interruption before prorated payment can be determined. The COR will provide written notice to Contractor acknowledging receipt and review of work performed within five (5) business days of Contractor's submission. If there is a dispute regarding the Contractor's prorated price request, the COR will attempt to resolve the matter, but the COR will make the final determination regarding payment amount.

Any requests by the Contractor to extend the time to submit an RA decision letter beyond the period stipulated in the Statement of Work must be submitted to, and approved, in writing, by the COR. Requests must be received at least five (5) business days before the RA decision letter is due. The COR will respond to the Contractor's request for an extension within two (2) days of business days receipt.

- A. Continuity of Service during Incremental Funding.** The Contractor acknowledges that the Government may obligate funds incrementally, particularly during a Continuing Resolution (CR). The formal exercise of an Option Year or the issuance of a task order modification by the Contracting Officer (CO) constitutes the "Notice to Proceed" for that period, subject to the availability of funds.

- B. Prohibition of Service Interruption.** The Contractor shall not interrupt, suspend, or recall contractor personnel due to the administrative processing of funding modifications.
- C. Financial Notification.** Per FAR 52.232-22, the Contractor (through the PM) is responsible for notifying the CO in writing when obligated funds reach 75%.
- D. Communication Protocol.** All inquiries regarding invoice processing, Delphi payment status, or funding levels must be funneled through the PM. Direct inquiries to the COR or threats to withhold service based on pending administrative funding actions will be documented as a performance issue in the Contractor Performance Assessment Reporting System (CPARS).

VIII. CONFLICT OF INTEREST/ REPLACEMENT OF CONTRACTOR PERSONNEL

If, for any reason, the Agency or the Contractor determines that the Contractor and/or an employee or subcontractor of the Contractor faces a potential, perceived or real conflict of interest, the agency shall notify the Contractor, or the Contractor shall notify the Agency of the potential, perceived or real conflict of interest, and the Contractor and/or contract employee shall cease all work. The COR, at its discretion, may authorize reassignment of the work or permit the contractor to complete the work. With the written approval of the COR, the Contractor may provide an acceptable replacement RA Support Analyst.

The COR may, at any time, demand removal of an RA Support Analyst or other Contractor staff from further work on this contract where the COR determines that work products prepared by the RA Support Analyst or other Contractor staff are consistently unacceptable or where facts demonstrate that the RA Support Analyst or Contractor staff is biased toward the Agency or a requestor or has jeopardized the Agency through their actions. In the event of removal per request of the COR, the Contractor shall reassign the work to a different RA Support Analyst within five (5) business days.

IX. CONFIDENTIALITY AND PRIVACY

The request file, decision letter, and any documentation containing personal data is to be treated in a confidential manner. Use is restricted to the Agency and the Contractor's staff directly involved in the processing of the case. When not in use, all records are to be stored in a locked cabinet or secure area, and electronic records

must be encrypted. All records must be returned to the Agency upon completion of the assignment and any copies shredded or deleted. The Contractor shall submit to the Agency a written certification of destruction for each closed case. A secure email server account must be utilized for all work performed under this contract.

X. MODIFICATIONS AND CANCELLATIONS

The Contracting Officer has the right, under this contract, to execute unilateral modifications for the following purposes: provide incremental federal funding; change the COR; and make other administrative changes which do not affect the legal obligations of the Contractor.

Bilateral modifications to this contract may be proposed by either party at any time during the period of performance of this Task and shall become effective upon approval by both parties.

The Government has the right to cancel tasks/contract if the requirement is eliminated, changed, or no longer needed. The Government shall notify the consultants/contractors, in writing 5 calendar days prior to the stop work date.

XI. GOVERNMENT REPRESENTATIVES

Contracting Officer

The Contracting Officer during the performance of this contract is:

Robin D. Golden
Contracting Officer
US. Department of Transportation 1200
New Jersey Avenue, SE Washington, DC
20590

Robin.Golden@dot.gov
202-366-1408

The Contracting Officer is the only individual who can legally commit or obligate the Government for the expenditure of public funds. The technical administration of this contract shall not be construed to authorize the revision of the terms and conditions of this contract. The Contracting Officer will authorize any such revision in writing.

TAR 1252.242-73 CONTRACTING OFFICER'S REPRESENTATIVE (OCT 1994)

(a) The Contracting Officer may designate Government personnel to act as the Contracting Officer's Representative (COR) to perform functions under the contract such as review and/or inspection and acceptance of supplies, services, including

construction, and other functions of a technical nature. The Contracting Officer will provide a written notice of such designation to the Contractor within five working days after contract award or for construction, not less than five working days prior to giving the contractor the notice to proceed. The designation letter will set forth the authorities and limitations of the COR under the contract.

(b) The Contracting Officer cannot authorize the COR or any other representative to sign documents (i.e., contracts, contract modifications, etc.) that require the signature of the Contracting Officer.

The COR is not authorized to change the scope of work or specifications as stated in this contract, to make any commitments or otherwise obligate the Government, or to authorize any changes which affect the contract price, task schedule, period of performance or other terms or conditions.

The Contracting Officer Representative during the performance of this contract is:

Babette Salmon
Departmental Office of Civil Rights
U.S. Department of Transportation 1200 New Jersey Avenue, SE Washington, DC
20590

Babette.Salmon@dot.gov
202-366-4070

The COR has the responsibility to inspect all deliverables and services and authorization to certify (but not to reject or deny) invoices for payment. The authority to reject an invoice or assess deductions on an invoice is expressly reserved for the CO.

The Government program manager or any other client representative is not authorized to change any of the terms and conditions of the resultant task order. Changes, if any, shall be made by the Contracting Officer only.

Unauthorized Commitment

The Government program manager or any other client representative is not authorized to change any of the terms and conditions of the resultant task order. Changes, if any, shall be made by the Contracting Officer only.

Organizational Conflict of Interest

The Department is committed to providing the public with service free from bias, conflicts of interest and unprofessional conduct. A contractor's goals, policies, practices, and culture must maintain the government's responsibility to the public for independent judgment without regard to remuneration from other sources. The contractor's attention is directed to FAR Subpart 9.5, Organizational Conflicts of Interest.

XII. Contractor Project Manager/Working Supervisor

The Contractor shall appoint a Project Manager. The Project Manager shall provide the single point of contact between the Contractor and the COR or other duly authorized representative under this contract. The Project Manager shall receive and execute, on behalf of the Contractor, such technical assignment directives as the COR or his duly authorized representative may issue within the terms and conditions of this contract.

The Contractor's Project Manager for this contract is:

TBD

XIII. SPECIAL CONTRACT REQUIREMENTS

Contractor Liability

All incidents that result in damage to property or equipment shall be reported to the Contracting Officer. The Contractor shall be financially responsible for damage caused by their personnel to equipment if the repair/replacement costs are more than \$2,500, unless otherwise negotiated with the Government Contracting Officer.

Access to Sensitive Information

Work under this contract may involve access to sensitive information which shall not be disclosed by the contractor unless authorized by the Contracting Officer. Sensitive Information is proprietary data or other information that, if subject to unauthorized access, modification, loss or misuse could adversely affect national interest, conduct of Federal programs, or privacy of individuals specified in the Privacy Act, but has not been specifically authorized to be kept secret in the interest of national defense or foreign policy under an Executive Order or Act of Congress.

To protect sensitive information, the contractor shall provide training to any contractor employee authorized access to sensitive information and, upon request of the Government, provide information as to an individual's suitability to have such authorization. Contractor employees found by the Government to be unsuitable or whose employment is deemed contrary to the public interest or inconsistent with the best interest of national security, may be prevented from performing work under the particular contract when requested by the contracting officer.

The Contractor shall ensure that contractor employees are: (1) citizens of the United States of America or an alien who has been lawfully admitted for permanent residence or employment (indicated by immigration status) as evidenced by Immigration and

Naturalization Service documentation; and (2) have background investigations in accordance with DOT Order 1632.28, Personnel Security Management.

The Contractor shall include the above requirements in any subcontract awarded involving access to Government facilities, sensitive information, and/or resources.

Physical Security

The Contractor shall be responsible for safeguarding all government property provided for contractor use. At the end of each work period, all Government facilities, equipment, and materials shall be secured.

Standards of Conduct

The Contractor shall be responsible for maintaining satisfactory standards of employee competency, conduct, appearance, and integrity. Safe operating practices shall be employed during the conduct of all services. As federal leased space, the facility is a smoke-free and drug free environment. Smoking shall not occur other than in designated smoking shelters, outside of the building.